

The Fundamental Duties were incorporated in the constitution to balance citizens' rights with responsibilities". Critically analyse the evolution, significance and legal enforceability of FDs in India.

Fundamental duties were incorporated in constitution by 42<sup>nd</sup> amendment act, 1976 on the recommendation of Swaran Singh committee. The committee recommended that while enjoying their fundamental rights, citizens should also be conscious about their duties too.

### EVOLUTION OF FDs

During emergency period (1975-1977), government felt the importance of inclusion of FDs in the constitution. Therefore,

government set up Swaran Singh committee for its recommendation. ~~The~~ FDs were added as an appendage to Part IV. This more or less reduced their significance right from their evolution. This evolution further met with opposition from Janta Party. They made changes in FDs through 43<sup>rd</sup> amendment act, 1977 and 44<sup>th</sup> a.a., 1978.

### Critical analysis of significance

- (i) FDs ~~does~~ not cover other duties like paying taxes, family planning etc.
- (ii) Something like patriotism [mentioned under Article 51A (d)] cannot be forced from outside.
- (iii) Some FDs have conflicting nature like the phrase 'noble ideals' may be interpreted differently by different people.



④ F.Ds are superfluous, they are just a codified form of Indian tradition.

F.Ds were not made legally enforceable due to following reasons—

- ① Overburdening on courts.
- ② F.Ds are feature of socialist country
- ③ Some F.Ds are vaguely worded.

The Indira Gandhi justified the inclusion of F.Ds by the sayings that "The F.Ds <sup>have been</sup> ~~are~~ added ~~not~~ just to not smother rights but to establish a democratic balance by making people conscious of their duties."